

equity, being at law regarded in the light of a stranger (*b*). So the trustee of a manor is the person to appoint the steward of it (*c*), and the trustees of an advowson to present to the church (*d*), but in either case he has the mere *legal right*, and is bound in *equity* to observe the directions of his *cestui que trust* (*e*).

24. **Trustee must prove in bankruptcy.** — So where a debtor to the trust estate becomes bankrupt, the trustee may prove for the debt, and that without the concurrence of the *cestui que trust* (*f*), unless it be such a simple trust as where A. is trustee for B. absolutely, and then it rests in the discretion of the judge to require the concurrence of the *cestui que trust*, for who knows but that B. may have already received the money (*g*).

Case of trustee a bankrupt. — If the *trustee* himself become *bankrupt* a *cestui que trust* may obtain an order to prove for the whole sum and will be entitled to vote at the choice of the creditors' trustee (*h*). A mere trustee of a debt for a person absolutely entitled and under no disability, cannot present a bankruptcy petition against the debtor without the concurrence of his *cestui que trust*; for as the *cestui que trust* who was competent to do so might have released the debt, "it might well happen that there was no real debt at all, although in legal parlance there might be a debt;"¹ and it makes no difference that the trustee has obtained final judgment against the debtor for the amount, and has served a

(*b*) See *Allen v. Imlett*, Holt, 641; *Gibson v. Winter*, 4 B. & Ad. 96; *May v. Taylor*, 6 M. & Gr. 261. But see now 36 & 37 Vict. c. 66.

(*c*) *Mott v. Buxton*, 7 Ves. 201; and see *Cary*, 14.

(*d*) See *Re Shrewsbury School*, 1 M. & Cr. 647; *Hill v. Bishop of London*, 1 Atk. 618.

(*e*) *Attorney-General v. Parker*, 3 Atk. 577, per Lord Hardwicke; *Attorney-General v. Forster*, 10 Ves. 338, per Lord Eldon; *Attorney-General v. Newcombe*, 14 Ves. 7, per

eundem; *Kensey v. Langham*, Cas. t. Talb. 144, per Lord Talbot; *Amhurst v. Dawling*, 2 Vern. 401; *Barret v. Glubb*, Sir W. Black. Rep. 1053, per De Grey, J.; and see *post*.

(*f*) *Ex parte Green*, 2 D. & Ch. 116, per *Cur*.

(*g*) *Ex parte Dubois*, 1 Cox, 310; and see *Ex parte Battier*, Buck, 426; *Ex parte Gray*, 4 D. & Ch. 778; [*Ex parte Culley*, 9 Ch. D. 307.]

(*h*) *Ex parte Cadwallader*, 4 De G. F. & J. 499.

¹ *Ex parte Culley*, 9 Ch. D. 307; *Ex parte Dearle*, 14 Q. B. D. 184, 191.